

Court No. - 29

Case :- WRIT - C No. - 21468 of 2019

Petitioner :- M/S P.L Cold Storage

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Onkar Nath

Vishwakarma, Praveen Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Heard Sri Pradeep Kumar, Senior Counsel assisted by Sri Praveen Kumar, learned counsel appearing for the petitioner, learned Standing Counsel and Sri Baleshwar Chaturvedi, Advocate who has accepted notice on behalf of respondents no.2, 3 & 4.

The petitioner is running a Cold Storage wherein huge quantity of potatoes of farmers is presently stored. The petitioner alleges that he has been regularly paying electricity charges as per the bills raised. Cold Storage of the petitioner was inspected on 14.06.2019 by the officers of Dakshinanchal Vidyut Vitran Nigam Limited and according to check report prepared on the spot, no discrepancy in use of electricity was pointed out. However, subsequently, on the same day, another inspection is said to have been done whereupon it has been stated that the seal of meter installed on the pole and that of check meter both of which are in custody of Dakshinanchal Vidyut Vitran Nigam Limited, were found tampered. On account of the said report, the petitioner has been assessed for theft of electricity energy on 15.06.2019 to the tune of Rs.20,35,248/-.

The argument of the learned counsel for the petitioner is that it is not a case of theft at all and that the subsequent inspection as alleged was not carried out in accordance with the norms prescribed, and that once no discrepancy was found, it cannot be said that the seals were tampered by the petitioner in between two inspections. Moreover, the petitioner is not responsible for the seals of the meters installed on the pole or check meter which are always under the control of Dakshinanchal Vidyut Vitran Nigam Limited.

The question as to whether it is actually a case of theft or that the petitioner has been rightly assessed for the theft of energy are both questions which can be considered and decided by the Executive Engineer in accordance with the provisions of clause 8.1 of U.P. Electricity Supply Code, 2005. Sub clause iv of clause 8.1 of U.P. Electricity Supply Code, 2005 provides that if after hearing, the authorized officer (who happens to be Executive Engineer) finds that a case of theft has been established, he shall assess the energy consumption for the past period as per formula given in Annexures 6.3. This clearly means that authorized officer is to first decide as to whether it is case of theft and then proceed to make assessment.

In view of the aforesaid facts and circumstances, considering it expedient and in the interest of justice we ***dispose off*** the petition with the direction that the petitioner may file his objections before the Executive Engineer in the form of representation within a period of two weeks from today and on the filing of such representation, authorized officer will consider both the

issues and pass appropriate speaking order in accordance with law. In the meantime, on the petitioner's depositing sum of Rs.5 lacs within three days, the electricity of the petitioner shall be immediately restored without waiting for the decision of the representation or final assessment etc.

It will be open for the petitioner to seek necessary documents from the authorized officer and it is expected that the same shall be provided to the petitioner to enable him to file proper objections.

Order Date :- 5.7.2019

S.Sharma